MEMORIALIZATION OF IN-PERSON DISCUSSION & CONFIRMATION OF DEFAULT: Chicago Ave LMAD Hazard Abatement

1 message

P M <phkmeng@gmail.com> Tue, Nov 3, 2026 at 9:15 PM
To: City Clerk <CityClerk@yorba-linda.org>, Jamie Lai <jlai@yorbalindaca.gov>
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To: CityClerk@yorba-linda.org , jlai@yorbalindaca.gov

CC: MikeMorganstern@ocfa.org , lmad.compliance.review@gmail.com

Subject: MEMORIALIZATION OF IN-PERSON DISCUSSION & CONFIRMATION OF DEFAULT: Chicago Ave LMAD Hazard Abatement

Assistant City Clerk Torres and City Engineering Department:

This email memorializes my in-person meeting with Assistant City Clerk Carolina Torres at Yorba Linda City Hall today, November 3, 2026.

During our discussion, Clerk Torres suggested I initiate communication with the City Engineer regarding the Chicago Avenue slope. She also offered her administrative opinion that the property owner currently lacks "consensus" to proceed with hazard abatement due to the City's discontinued communication.

I directly informed her that the current unmitigated forestation presents an imminent and active danger to the public, specifically threatening the pre-1980 non-fire-resistant homes along Chicago Avenue and the subterranean high-pressure pipeline.

To ensure the administrative and legal record remains perfectly clear for the public audit ledger regarding this municipal posture:

1. **Inaction is the Catalyst, Not Consensus:** Private self-help abatement of a documented public nuisance under California Civil Code §§ 3495 and 3502 is an emergency remedy of last resort. It does not require municipal "consensus" or secondary approvals. It is legally triggered precisely by formal notice followed by the responsible authorities' deliberate failure to act in the face of imminent danger.

2. **Exhaustion of Remedies & Perfected Default:** The City has possessed the substantive stamped P.E. technical hazard report detailing these exact violations since last year. On October 7, 2026, the City and OCFA were formally served a final Notice of Strict Liability, which incorporated this established engineering record via the immutable public GitHub audit ledger. Because both agencies have continually failed to abate the OCFA Guideline B-09 staging violations and CPUC GO 112-F pipeline encroachment hazards managed under the City's landscape easement, the final administrative default formally lapsed on October 14, 2026.

3. **Purpose of Engineering Communication:** To be absolutely clear, I am not reaching out to the City Engineer to toll any deadlines, re-open a lapsed review period, submit to a new discretionary process, or seek permission. The imminent hazard is a matter of settled, long-standing record. Any communication with the Engineering Department serves strictly as a courtesy notification regarding the impending physical self-help abatement phase to protect the underlying fee property and subterranean utility infrastructure.

Due to the ongoing non-responsiveness and failure to mitigate by municipal and fire authorities, the underlying fee owner retains all statutory rights to immediately abate this unmitigated threat to life and property.

Respectfully,

Peter Meng, P.E.

Underlying Fee Property Owner

CC: LMAD Compliance Review Audit Ledger (lmad.compliance.review@gmail.com)